

Banking Offense and Punishment Act, 2008

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Amending Acts

1. Banking Offence and Punishment (First Amendment) Act, 2073 2073.06.18
2. Act to Amend Some Nepal Acts Relating to the Civil Code, 2075 2076.01.02
3. Banking Offence and Punishment (Second Amendment) Act, 2082 2082.01.24

Act No. 35 of the Year 2064 enacted by the Legislature-Parliament

An Act Made to Provide for Banking Offences and Punishments

Preamble: Amended by the First Amendment. Whereas, it is expedient to make legal provisions relating to banking offences and punishments in order to mitigate the effect and risk on banks and the financial system from criminal acts that may occur in transactions of the banking and financial system, thereby enhancing the credibility of the banking and financial system;

Now, therefore, the Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act shall be called the "Banking Offence and Punishment Act, 2064".

(2) This Act shall apply throughout Nepal and shall also apply to any person or institution that, after committing a banking offence in Nepal, is residing or staying abroad.

(3) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Bank" means an institution licensed by Nepal Rastra Bank to transact "Class A" financial business pursuant to the prevailing law.

(b) "Banking Offence" means an offence under Chapter-2.

(c) "Financial Institution" means an institution licensed by Nepal Rastra Bank to transact "Class B", "C", and "D" financial business pursuant to the prevailing law.

(d) "Institution" means a firm or company capable of opening an account with a bank or financial institution or cooperative bank pursuant to the prevailing law, and said term also denotes other organized institutions or agencies established pursuant to the prevailing law.

(e) "Borrower" means a person, firm, company or an organized institution established pursuant to the prevailing law taking a loan from a bank or financial institution or cooperative bank, and said term also

denotes a guarantor. Amended by the Second Amendment.(f) "Cooperative Bank" means a cooperative bank formed pursuant to Section 12 of the Cooperative Act, 2074. Added by the First Amendment.(g) "Dhikuti Transaction" means a transaction conducted by collecting money among each other and taking or giving money on a rotational basis based on agreement.

Added by the First Amendment.(h) "Financial System" means the overall financial system including banks or financial institutions or cooperative banks established and operating pursuant to law for conducting any banking or financial transaction, Deleted by the Second Amendment. institutions engaged in financial intermediation, institutions dealing in securities, commodities and services exchange, institutions dealing in insurance and underwriting, and institutions operating by establishing collective funds, along with services, payment and settlement systems provided by such institutions. Added by the First Amendment.(i) "Authorized Person" means a person or office bearer empowered to make a final decision in the course of any business transaction. Added by the First Amendment.(j) "Family Member" means the husband, wife, son, daughter, adopted son, adopted daughter, father, mother, step-mother residing in the common household of a founder, director, shareholder considered to have a financial interest pursuant to the prevailing law, chief executive officer, employee, managing agent or related person of a bank or financial institution or cooperative bank. And said term also denotes a brother, sister and elder sister, younger sister whom one is obliged to support. Added by the Second Amendment.(k) "Cheque" means a bill of exchange drawn on any bank or financial institution or cooperative bank, payable on demand, pursuant to the prevailing law. Added by the Second Amendment.(l) "Cheque Dishonour" means a situation where a bank or financial institution or cooperative bank certifies pursuant to subsection (5) of Section 3A. that payment cannot be made to the holder due to insufficient funds in the account of the account holder who issued the cheque, when payment of the amount mentioned in the cheque is demanded. Added by the Second Amendment.(m) "Holder" means a person or institution who has received a cheque issued in their name and is entitled to receive payment of the amount as mentioned in that cheque. Chapter-2 Banking Offences 3.

Added by the Second Amendment.3A. Not to Issue Cheque Without Sufficient Balance: (1) No one shall issue a cheque to anyone or demand payment of such cheque from a bank or financial institution or cooperative bank when there is no balance in their account, or even if there is a balance, it is insufficient for payment.

(2) If, upon examining and matching a cheque presented for payment with the account of the relevant person or institution, a bank or financial institution or cooperative bank finds that the amount required to pay such cheque is not in the account, it shall return such cheque to the holder.

(3) If the holder of a cheque returned pursuant to subsection (2) wants to have the dishonour certified, the bank or financial institution or cooperative bank shall, by fixing a maximum period of forty-five days from the date the holder presented the cheque to it, notify the relevant account holder through any means to deposit the required amount in their account, and shall keep a record thereof.

(4) After keeping a record of the notice given to the account holder pursuant to subsection (3), the bank or financial institution or cooperative bank shall mention the matter on the cheque as well and return such cheque to the holder.

(5) If, after the expiry of the period specified pursuant to subsection (3), the holder demands payment of the amount as mentioned in the cheque returned pursuant to subsection (4) and the payment cannot be made due to insufficient balance in the account, the bank or financial institution or cooperative bank shall, within three days, certify the fact that the relevant account holder has dishonoured the cheque and return such

cheque to the holder.

(6) Notwithstanding anything contained elsewhere in this Section, if the account holder has been notified pursuant to subsection (3), the account holder may, at any time, pay the amount mentioned in such cheque to the holder and take back the cheque.

(7) The procedure for certifying the fact of cheque dishonour pursuant to this Section shall be as determined by Nepal Rastra Bank. 4. Repealed by the First Amendment. 5. Not to Withdraw Money or Make Payment Unauthorizedly: No one shall perform the following acts while withdrawing money or making payment from an account held in a bank or financial institution or cooperative bank:-

(a) To withdraw money from another person's account unauthorisedly,

(b) Deleted by the First Amendment.

(c) To transfer money or make cash payment from a customer's account unauthorisedly,

(d) Deleted by the First Amendment. 6.

Not to Receive or Make Payment through Misuse or Unauthorised Use of Electronic Means: No one shall receive or make payment through misuse or unauthorised use of credit cards, debit cards, automated teller machine (ATM) cards or other electronic means. 7. Not to Take or Grant Loan Unauthorisedly: No one shall perform the following acts while taking or granting a loan from a bank or financial institution or cooperative bank:- (a) To take or grant a loan by submitting false, fake or non-existent financial statements or by creating a fictitious business, (b) To take or grant a loan by abnormally overvaluing collateral, (c) To take or grant an excessive loan by abnormally inflating the project cost based on false details, (d) To obtain or provide credit, facility or concession exceeding the authority or approved limit received, Added by the First Amendment.(d1) For a chief executive officer or employee of a bank or financial institution or cooperative bank to take a loan or advance from that bank or financial institution or cooperative bank in any manner other than the loan or advance under employee facilities obtainable according to the prevailing employee administration regulations or prevailing employee loan or facility regulations of that bank or financial institution or cooperative bank, Added by the First Amendment.(d2) For a founder, director, or shareholder considered to have a financial interest pursuant to the prevailing law, or a family member of such person, of a bank or financial institution or cooperative bank, to take a loan from that bank or financial institution or cooperative bank: Provided that the said provision shall not be deemed to prevent taking a loan secured by a fixed deposit receipt, gold or government bond. Amended by the First Amendment.(e) To take or grant a loan again by placing the same security, which has already been given to one bank or financial institution or cooperative bank, with another bank or financial institution or cooperative bank without its due release, Provided that this prohibition shall not apply to granting or obtaining a loan subject to a second charge (pari passu) as per the prevailing law relating to co-financing to the extent covered by the value of the security.

Added by the First Amendment.(f) To incorporate an institution in the name of a person who does not have the financial capacity to operate a business or whom one can unduly influence, and take a loan through such institution or by creating a fictitious borrower, or knowingly grant a loan or cause to take or grant a loan for such acts,

(g) To grant more loan than necessary compared to the customer's transaction,

(h) To take or give any kind of undue benefit in return for providing loan facility. Added by the First Amendment.(i) For a founder, director, chief executive officer or a person authorised to disburse loans of a

bank or financial institution or cooperative bank, to create a fictitious borrower with the intention of also availing loan facilities oneself, and receive or make payment of the whole or partial amount of such loan,

Added by the First Amendment.(j) For a founder, director, chief executive officer or a person authorised to disburse loans of a bank or financial institution or cooperative bank, to disburse any type of loan in the name of any person or institution in which they have a financial interest. 8. Not to Misuse Loan: No one shall misuse or cause to misuse a loan by not using the loan facility taken from a bank or financial institution or cooperative bank for the purpose for which it was taken and using it elsewhere. 9. Not to Misuse Banking Resources, Means and Property: Amended by the First Amendment.(1) A founder, director, shareholder considered to have a financial interest pursuant to the prevailing law, chief executive officer, employee, managing agent or related person or institution, or a family member of such person, of a bank or financial institution or cooperative bank shall not, by taking a facility from the bank or financial institution or cooperative bank or in any other way, misuse its resources and means. Provided that,-

(1) This shall not be deemed to prevent a chief executive officer or employee of a bank or financial institution or cooperative bank from taking a loan or advance under employee facilities pursuant to the prevailing law.

(2) This shall not prevent granting a loan or facility to a near relative with the approval of the board of directors of the bank or financial institution or cooperative bank.

Explanation: For the purposes of this subsection,-

(a) "Family Member" means the husband or wife, son, daughter, adopted son, adopted daughter, father, mother, step-mother, and brother, sister and elder sister, younger sister whom one is obliged to support of the concerned person.

(b) "Near Relative" means separated brother, sister-in-law (buhari), married sister, brother-in-law (bhinaju/jwain), nephew, niece, brother-in-law (sala), sister-in-law (sali), mother-in-law, father-in-law, uncle (kaka), aunt (kaki), maternal uncle (mama), maternal aunt (maiju), brother-in-law (bhauja/bhauji), sister-in-law (bhauji), grandson, granddaughter, granddaughter-in-law, grandson-in-law.

(2) No one shall expend or cause to expend the property of a bank or financial institution or cooperative bank in a manner detrimental to the interest of depositors or the bank or financial institution or cooperative bank.

(3) No one shall commit any financial irregularity while auctioning or selling non-banking assets including other property of a bank or financial institution or cooperative bank, or conducting any other transaction. Amended by the First Amendment.10. Borrower Not Entitled to Withdraw Money and Acquire Property: (1) A borrower who has been blacklisted after the expiry of the loan repayment period due to a bank or financial institution or cooperative bank shall not, without repaying the loan payable by them, open an account and deposit money in a bank or financial institution or cooperative bank located domestically or abroad, or continue or operate such an account, or in any other way purchase any movable or immovable property, or acquire any right or enjoyment over such property in any manner. Provided that,-

(a) An account may be opened for the purpose of repaying the loan, money may be kept in the account for up to thirty days, and the loan may be paid by cheque.

(b) The borrower may withdraw money from bank accounts held domestically or abroad, up to the amount prescribed for the purpose of basic necessary expenses required for daily living. 11. Not to Stop Loan or Facility So as to Damage Borrower's Ongoing Project: After a bank or financial institution or cooperative bank has approved a loan or facility for a borrower's project and disbursed the first instalment, it shall not stop the

remaining instalments of loan or facility in the middle so as to damage the borrower's ongoing project without sufficient grounds and reasonable cause. 12.

Added by the First Amendment.12A. Not to Deceive Bank, Financial Institution or Amended by the Second Amendment.Cooperative Bank in Transactions: (1) No one shall cause loss or damage to a bank or financial institution or Amended by the Second Amendment.cooperative bank by taking, giving, causing to obtain movable or immovable property belonging to the bank or financial institution or Amended by the Second Amendment.cooperative bank, to which one has no right, by collusion or conspiracy, or by making, giving or presenting forged documents to acquire a right over property to which one has no right, or by deceiving that one possesses what one does not have, or by deceiving that a false thing is true, or by cheating or duping in any other manner, or by claiming the property of the bank or financial institution or Amended by the Second Amendment.cooperative bank as one's own, whether by deed or not, and selling, exchanging or transferring that property.

(2) No one shall, by means of false, fraudulent statements, promises or in any other manner, cause loss or damage to a bank or financial institution or Amended by the Second Amendment.cooperative bank by obtaining cash, funds, securities or other movable or immovable property under the control, custody or ownership of that bank or financial institution or Amended by the Second Amendment.cooperative bank, or by taking possession or control of such property, or by assisting in the execution of such a scheme.

(3) No one shall, based on false or incorrect details or promises of any kind, transact with a bank or financial institution or Amended by the Second Amendment.cooperative bank, or by concealing their name, stating their name is not theirs but another's, or claiming another person's name as their own and that they are that person, or knowingly causing or having such things said or done by another, with the intention of avoiding punishment for an offence or with dishonest intent, by cheating or duping, cause any kind of loss or damage to the bank or financial institution or Amended by the Second Amendment.cooperative bank and gain benefit for themselves or others. Amended by the First Amendment.13.

Not to Make Excessive, Low or Incorrect Valuation and Financial Statements: (1) While valuing movable or immovable property kept as loan collateral in a bank or financial institution or cooperative bank, or movable or immovable property of a bank or financial institution or cooperative bank held as non-banking assets for auction sale or other purposes of the bank or financial institution or cooperative bank, the concerned valuer shall not make an excessive, low or incorrect valuation. (2) A valuer shall not value the property of any person or institution in which they have a financial interest. (3) For the purpose of obtaining a loan or facility from a bank or financial institution or cooperative bank, no person, firm, company or institution shall prepare or cause to prepare separate financial statements for the same date or period. (4) An auditor shall not certify financial statements for the same date or period for submission to the Government of Nepal, foreign donor agencies or other bodies, in a manner that differs without disclosing their opinion and content. 14. Not to Conduct or Cause to Conduct Irregular Economic and Financial Transactions: With the intention of causing loss or damage to a bank or financial institution or cooperative bank, no one shall cause or not cause any work to be done, show or not show favour, take or give any kind of money, take or give any goods, articles or services without payment or at a low price, take or give donations, charity, gifts or subscriptions, prepare or cause to prepare false documents, make or cause to make translations, or do or cause to do any act with malice to cause illegal gain or loss. Added by the First Amendment.14A. Not to Conduct Dhikuti Transaction: No one shall conduct or cause to conduct a dhikuti transaction. Amended by the Second Amendment.14B. Not to Conduct Banking Business Without Obtaining Approval: A cooperative bank shall not conduct or cause to conduct banking business without obtaining approval from Nepal Rastra Bank. Chapter-3 Penalties and

Punishments 15. Penalties and Punishments: Amended by the First Amendment.(1) If anyone commits any offence under Section 3, if the loss amount is ascertained, the loss amount shall be recovered, along with a fine equal to the loss amount and imprisonment for up to three months; and if anyone commits any offence under Section 11, the loss amount shall be recovered, along with a fine equal to the loss amount.

Added by the Second Amendment.(1A) If a cheque dishonour is certified pursuant to subsection (5) of Section 3A., the amount equal to the loss amount along with interest on that amount from the date of issuing the cheque until the date of recovery as per the prevailing law shall be recovered from the account holder who issued the cheque and given to the holder, and the account holder who issued the cheque shall be punished with a fine of five percent of the loss amount and imprisonment as follows:-

- (a) If the loss amount is up to fifteen lakh rupees, imprisonment for up to one month,
- (b) If the loss amount exceeds fifteen lakh rupees up to fifty lakh rupees, imprisonment from one month to three months,
- (c) If the loss amount exceeds fifty lakh rupees up to one crore rupees, imprisonment from three months to one year,
- (d) If the loss amount exceeds one crore rupees up to ten crore rupees, imprisonment from one year to two years,
- (e) If the loss amount exceeds ten crore rupees, whatever the amount, imprisonment from two years to four years. Amended by the First Amendment.(2) If anyone commits any act under Section 5, 6, clauses (d), (d1), (d2), (e), (f), (g), (h), (i) and (j) of Section 7, Section 8, 9, 10, 12 or 14, if the loss amount related to such offence is as follows, the punishment shall be imprisonment and recovery of the loss amount along with a fine equal to the loss amount according to the quantity of the offence as follows:-

- (a) If the loss amount is up to ten lakh rupees, imprisonment for up to one year,
- (b) If the loss amount exceeds ten lakh rupees up to fifty lakh rupees, imprisonment from two years to three years,
- (c) If the loss amount exceeds fifty lakh rupees up to one crore rupees, imprisonment from three years to four years,
- (d) If the loss amount exceeds one crore rupees up to ten crore rupees, imprisonment from four years to six years,
- (e) If the loss amount exceeds ten crore rupees up to fifty crore rupees, imprisonment from six years to eight years,
- (f) If the loss amount exceeds fifty crore rupees up to one billion rupees, imprisonment from eight years to ten years,
- (g) If the loss amount exceeds one billion rupees, whatever the amount, imprisonment from ten years to twelve years.

Amended by the First Amendment.(3) For the following offences, the punishment shall be as follows:-

- (a) For an offence under clauses (a), (b), (c) of Section 7 or Section 13, the loss amount shall be recovered, a fine equal to the loss amount shall be imposed, and imprisonment for up to four years.

(b) For an offence under Section 12A., 14A. or 14B., if the loss amount related to such offence is as follows, the punishment shall be imprisonment and recovery of the loss amount along with a fine equal to the loss amount according to the quantity of the offence as follows:-

- (1) If the loss amount is up to fifty lakh rupees, imprisonment from one year to three years,
- (2) If the loss amount is from fifty lakh rupees up to five crore rupees, imprisonment from three years to five years,
- (3) If the loss amount is from five crore rupees up to fifty crore rupees, imprisonment from five years to seven years,
- (4) If the loss amount exceeds fifty crore rupees, whatever the amount, imprisonment from seven years to nine years.
- (5) If the loss amount is confiscated pursuant to this Section and the loss amount cannot be ascertained, a fine of up to ten lakh rupees and imprisonment for up to two years shall be imposed according to the quantity of the offence.
- (6) If an institution commits an offence under this Act, and the office bearer or employee who committed such offence is identified, that office bearer or employee shall be held responsible; and if not identified, the person acting as the head of the office of such institution at the time of committing the offence shall be held responsible. Amended by the First Amendment.(6) A person or institution who attempts to commit a banking offence or indirectly engages in or assists in the commission of such offence shall be punished with half the punishment prescribed for the offender. Added by the First Amendment.(7) If an institution attempts to commit a banking offence or indirectly engages in or assists in the commission of such offence, the chief executive or office bearer or person performing executive functions of such institution shall be punished under this Act. Added by the First Amendment.(8) If the person committing an offence under Section 3, Added by the Second Amendment.3A., 5, 6, 7, 8, 9, 10, 11, 12, 12A., 13, 14, 14A. and 14B. is the chairperson, director, or chief executive officer of the concerned institution, an additional one year of imprisonment shall be added to the punishment under this Act. 16.

Punishment for Hindrance or Opposition: If anyone hinders or opposes investigatory and inquiry-related work under this Act, the officer hearing the case may, based on the report of the investigating and inquiring officer, punish such person with imprisonment for up to six months or a fine of up to five thousand rupees or both.

Chapter-4 Case Proceedings and Adjudication 17. Period for Filing Complaint and Limitation: (1) For an offence under this Act, a complaint may be filed within one year from the date of knowledge of the commission of such offence, and the Government of Nepal shall, through a notification published in the Nepal Gazette, have the case filed in the court specified to be heard by the concerned Commercial Bench. (Nepal Gazette dated 2066.4.5 No. 14)specified within six months from the date of filing such complaint. Added by the Second Amendment.(1A) Notwithstanding anything contained in subsection (1), for an offence under Section 3A., a complaint may be filed within one year from the date the cheque dishonour is certified, and the case shall be filed in the concerned District Court within six months from the date of filing such complaint. (2) Notwithstanding anything contained in subsection (1), in respect of a banking offence committed by an employee or office bearer of any bank or financial institution or cooperative bank while holding any position, causing misappropriation or loss or damage to the property of the bank or financial institution or cooperative bank, a case may be filed against such employee or office bearer at any time, and there shall be no bar to filing a case even after such employee or office bearer has retired from their position. 18. To be a

Government Case: Cases punishable under this Act shall be Government of Nepal cases, and such cases shall be deemed to be included in Schedule-1 of the Transformed by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 and amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. Muluki Criminal Procedure Code, 2074. 19.

Action May Be Taken by Keeping in Custody: (1) Notwithstanding anything contained in the prevailing law, if sufficient cause exists that a person against whom proceedings are initiated for an offence under this Act may destroy or conceal any evidence or hinder, obstruct or adversely affect the investigation and inquiry proceedings, or if there are reasonable grounds to believe, based on evidence immediately available, that a person without permanent residence in Nepal is an offender of a banking offence punishable with imprisonment for six months or more, the investigating and inquiring officer may arrest such person with an arrest warrant and keep them in custody pursuant to the prevailing law. (2) If, regarding a person kept in custody under subsection (1), it appears that the investigation and inquiry cannot be completed within twenty-four hours and that it is necessary to continue the investigation and inquiry by keeping the person in custody, the investigating and inquiring officer shall produce the person before the officer hearing the case and keep them in custody only after obtaining permission from the officer hearing the case. (3) While requesting permission under subsection (2) from the officer hearing the case, the accusation against the person in custody, the basis thereof, the reasons for needing to investigate and inquire by keeping the person in custody, and if statements have been recorded, the content of the statements shall be clearly mentioned. (4) If permission is requested to keep in custody under subsection (2), the officer hearing the case shall examine the relevant documents, consider whether the investigation and inquiry is being conducted satisfactorily, and if it appears that the investigation and inquiry is being conducted satisfactorily, may grant permission to keep in custody for a maximum of Amended by the First Amendment.sixty days, either at once or in installments, not exceeding Amended by the First Amendment.seven days at a time. Added by the Second Amendment.Provided that the period of such permission to keep in custody shall not exceed the period of imprisonment prescribed under this Act. Added by the First Amendment.19A. Special Investigation Team May Be Formed: (1) Notwithstanding anything contained in the prevailing law, if it seems appropriate to form an investigation team including experts in banking subjects to investigate cases related to banking offences, the Government of Nepal may form such team in consultation with the Attorney General, the Inspector General of Police and Nepal Rastra Bank. (2) The special investigation team formed under subsection (1) shall have the same powers as the investigating and inquiring officer under this Act or prevailing law. Added by the First Amendment.19B.

May Request Details: (1) For fulfilling the objectives of this Act, if the investigating and inquiring body deems it necessary to obtain or examine any document, account details or other details, and considers that such document, account details or other details related to the investigation and inquiry are with any person or institution or that such person or institution can obtain and present them, the investigating and inquiring body may request such person or institution to present such document, account details and other details. (2) It shall be the duty of the concerned person or institution to provide the document, account details or other details requested by the investigating and inquiring body under subsection (1). Chapter-5 Miscellaneous 20. To Provide Assistance: While investigating and inquiring into a banking offence under this Act, it shall be the duty of the bank or financial institution or cooperative bank or the concerned person to provide necessary assistance to the investigating and inquiring officer. 21. No Action on Ground of Breach of Confidentiality: Notwithstanding anything contained in the prevailing law, if the person providing information or assistance necessary to initiate legal proceedings regarding an offence committed or about to be committed under this Act, or to prevent such offence, is an employee of a bank or financial institution or cooperative bank, no

action shall be taken against them on the ground of breach of confidentiality under the law relating to their terms of service for such assistance provided or rendered. 22.

Provision Relating to Service of Notice: (1) Notwithstanding anything contained in the prevailing law, when a notice is to be served in the name of a foreign person for an offence under this Act, if such person has any kind of office or representative within Nepal, the notice shall be served in the name of such office or representative, and notice served in this manner shall be deemed to be duly served. (2) If there is no office or representative under subsection (1), if there is a principal place of business of such person, or an address of their permanent residence, or any address given by them for correspondence at the time of transaction, the notice shall be served at such address through telex, telefax or other telecommunication means capable of creating a record, or by registered post, and notice served in this manner shall be deemed to be duly served. (3) Notwithstanding anything contained in subsection (1) or (2), if there is a separate provision in any treaty to which the Government of Nepal or Nepal is a party regarding the service of notice in the name of a person residing or staying abroad, this Section shall not be deemed to prevent the service of notice according to that provision. 23. To Publish Notice: If, while sending a notice or serving a notice in the name of any person under this Act or other prevailing law, a report is received that such notice could not be delivered or served due to the address of such person not being located or for any other reason, then, notwithstanding anything contained in the prevailing law, a public notice shall be published at least twice in a national level newspaper (in an English daily in the case of a foreigner) specifying the investigation or, if a case has been filed before the officer hearing the case, a brief description of the matter, calling upon such person to appear within a period of up to thirty days. Upon such publication, it shall be deemed that such person has been duly notified or the notice has been duly served, notwithstanding anything contained in this Act or other prevailing law. 24.

Order to Seize Property of Foreign Person: (1) If any foreign person, who has been notified or served a notice pursuant to Section 22, fails to appear before the investigating and inquiring officer, and if such person has any property, right, interest or concern within Nepal, the investigating and inquiring officer may order that such property, right, interest or concern be kept in its existing state as directed by the investigating and inquiring officer or not be taken out of Nepal until such person appears before the investigating and inquiring officer, and it shall be the duty of all concerned to comply with such order. (2) A person who fails to comply with an order under subsection (1) may be fined up to one lakh rupees by the investigating and inquiring officer, and if any kind of loss or damage is caused to the Government of Nepal or a public institution due to such non-compliance, that amount shall also be recovered from such person. 25. No Bar to Conduct Proceedings and Adjudicate Case: Notwithstanding anything contained in the prevailing law, the death of the accused or defendant before or after the filing of a case under this Act shall not be a bar to the proceedings and adjudication of the case. 26. Reduction in Sentence Claim Possible: An accused who assists in the investigation and inquiry work under this Act may be presented by the investigating and inquiring officer as their witness and may be granted full or partial immunity from the sentence claim. Provided that if the assistance provided by such person is not corroborated by other evidence or proof, or if such person gives a statement before the officer hearing the case that is contrary to the assistance provided to the investigating and inquiring officer, a case may be filed again against such person, notwithstanding anything contained in this Act or the prevailing law. Added by the Second Amendment. 26A.